
Trump's latest move to restrict voting rights

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Considering the current hysteria over alleged [non-citizen voting](#), it may come as a surprise to many Americans that for a good part of our history, many states not only allowed it, they actively encouraged it. According to “[The Passing of Alien Suffrage](#)” by Leon E. Aylsworth, at least 22 states allowed non-citizens to vote during the 19th-century. Some states were trying to fulfill certain population numbers to meet statehood requirements, while others in the post-Civil War period needed to replace the newly freed enslaved population and used the vote as an enticement for immigrant labor. However, as one would expect, they generally only extended the franchise to white men, excluding those of different races and women.

By the 1920s, most states had put a stop to the practice. Waves of xenophobia had swept the nation at the turn of the century following a massive surge of immigration from Southern and Eastern Europe. Congress [enacted strict immigration quotas](#) that remained until the 1960s.

The idea of non-citizen voting happening today is preposterous. In its 2007 report titled “[The Truth About Voter Fraud](#),” the Brennan Center for Justice found that incident rates for voter impersonation fraud were miniscule — between 0.0003 and 0.0025% — figures that debunk [Donald Trump’s](#) grand accusations that the 2016, 2018 and 2020 elections were [rigged with illegal voting](#).

That hasn’t stopped Trump and the GOP from attacking the franchise. His latest gambit is demanding that states turn over their voting rolls to the Department of Homeland Security and create “[citizenship lists](#)” to be held by the federal government and used to determine who is eligible to vote. But his own administration has admitted this would be tricky to manage; in a recent hearing, the Justice Department [noted](#) that any lists would be incomplete and incorrect — meaning that eligible voters would no doubt be denied their right to vote.

As the New York Times [reported](#), “only [about 54 percent](#) of Americans have passports. Social Security cards, which are generally issued to Americans at birth, can also be possessed by noncitizens. Naturalized citizens do not have U.S. birth certificates, which prove citizenship by birthright. And no central index exists for naturalization records, according to [the National Archives](#).” We don’t have a national ID card in America, but you can imagine that if this order is cleared by the Supreme Court, there would be no choice but to issue them, which would be a bureaucratic nightmare of epic proportions.

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Trump’s citizenship lists — “I think this will help a lot with elections,” he said when signed the executive order authorizing them in March — is just the latest in a series of attacks against voting rights. In service of his obsessive hostility toward mail-in voting, which benefits both Republicans and Democrats, he has signed an [executive order](#) requiring the U.S. Postal Service to determine if any mail-in ballots are ineligible, an absurd idea for an institution that’s already over-burdened and understaffed, not to mention completely unqualified for such a task. The order is being challenged and has been [blocked by several courts](#).

The president is also lobbying relentlessly for the [SAVE Act](#), which calls for excessively restrictive voter IDs that would effectively disenfranchise millions of eligible voters. (The legislation remains

stuck in the Senate, where it is unlikely to pass, unless Republicans win a decisive victory in the fall.) On Jan. 29, the FBI [raided the elections office](#) in Fulton County, Georgia, and seized the 2020 ballots to make a case for voter fraud there, despite numerous recounts and court cases that have proved otherwise.

This comes on top of the Supreme Court's recent [virtual repeal](#) of the Voting Rights Act, after which we saw the Southern states [rushing to eliminate Black majority districts](#) as fast as humanly possible — even to the extent of [throwing out votes](#) that had already been cast in the upcoming elections. The result will most likely be the [elimination of Black representation](#) in most of those states.

Trump and the GOP are leaving no stone unturned, and if they succeed it could fundamentally change the American system in a way that could greatly benefit an authoritarian central government should the high court go along with it.

But it's important to remember that the right's claims of voter fraud long predate Donald Trump; they are rooted in the voter suppression and disenfranchisement schemes of Jim Crow. In recent years, they [picked up speed](#) after the 2000 presidential election, which was so close that it took six weeks of recounting, lawsuits and a Supreme Court decision to decide the winner. Conservatives decided they could no longer tolerate the possibility that Republicans might lose elections. They were eventually joined by anti-immigration zealots pushing the [“Great Replacement” theory](#), declaring that the Democrats are luring immigrants to America so they will vote out the Republicans.

The birthright citizenship case that is pending before the Supreme Court will soon tell us at least something about whether that body is inclined to go along. If the conservative majority chooses to completely ignore the plain language of the Fourteenth Amendment by using some tortured rationale, we will know that they are fully onboard with Trump's federal power grab instead of jealously guarding, as it often has in the past, “states' rights” as a way to obstruct liberal federal policies. With the shoe on the other foot, it's entirely possible the Court could see new wisdom in allowing the executive branch to take charge of national elections as well. After all, it's not as if the conservative majority is particularly concerned about precedent or intellectual consistency anymore.

Read more

about the Voting Rights Act

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